Showing contexts for: **specific performance property** in Polotrips India Pvt. Ltd. & Anr. vs Karnataka Bank Limted & Ors. on 18 September, 2024

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> "A. BECAUSE the suit sought to be transferred, is a suit for **specific performance** in relation to property situated at Bawal, Rewari District, Haryana, and in view of the judgement of the Hon'ble Supreme Court in Harshad Chiman Lal Modi v/s DLF Universal & Ors. AIR 2005 SC 4446 a suit for **specific performance** is liable to transferred where the property is situated even if there is contract between the parties. B. BECAUSE the pending suit before the Delhi High Court is not instituted within the appropriate jurisdiction as per laid down law.

> 3. List for arguments on 09.08.2024."

14. In these altered facts, the plaintiff and defendants addressed arguments on the aspect of territorial jurisdiction on 09.08.2024 and 13.08.2024.

15. Mr. Sanjeev Sindhwani, learned senior counsel for the plaintiff stated that since the plaintiff is willing to abandon the relief of physical possession, the relief of **specific performance** sought at prayer clause (a) would be maintainable in view of proviso to Section 16 CPC as the said relief can be obtained through the personal obedience of defendant no. 2. 15.1. In support of this proposition, he relied upon the judgment of a Coordinate Bench of this Court in Bhawna Seth v. DLF Universal Limited2 and Dr. Ramesh Chander Munjal v. Dr. Suraj Munjal3. Additionally, he relied upon the judgment of the Division Bench of this court in Anil Verman MANU/DE/7173/2007, Paragraphs 5, 7, 8, 9, 12, 17 and 18 2022 SCC OnLine Del 1045, Paragraphs 21, 22 and 28 v. Raheja Developers Private Limited4 and the

judgment of the Supreme Court in Babu Lal v. Hazari Lal Kishori Lal5 to contend that it is not necessary for the plaintiff in a suit for **specific performance** to seek the relief for possession and the plaintiff can therefore, maintain the present suit for **specific performance** by abandoning the plea for possession in prayer (b). He states that the plaintiff can file a fresh suit at a subsequent stage for the physical possession of the suit property after obtaining a decree for **specific performance**.

> "13. The expression in sub-section (1) of Section 22 "in an appropriate case" is very significant. The plaintiff may ask for the relief of possession or partition or separate possession "in an appropriate case".

As pointed out earlier, in view of Order 2 Rule 2 of the Code of Civil Procedure, some doubt was entertained whether the relief for **specific performance** and partition and possession could be combined in one suit; one view being that the cause of action for claiming relief for partition and possession could accrue to the plaintiff only after he acquired title to the property on the execution of a sale deed in his favour and since the relief for **specific performance** of the contract for sale was not based on the same cause of action as the relief for partition and possession, the two reliefs could not be combined in one suit. Similarly, a case may be visualised where after the contract between the plaintiff and the defendant the property passed in possession of a third person. A mere relief for **specific performance** of the contract of sale may not entitle the plaintiff to obtain possession as against the party in actual possession of the property. As against him, a decree for possession must be **specific**ally claimed or such a person is not bound by the contract sought to be enforced. In a case where exclusive possession is with the contracting party, a decree for **specific performance** of the contract of sale simpliciter, without **specific**ally providing for delivery of possession, may give complete relief to the decree-holder. In order to satisfy the decree against him completely he is bound not only to execute the sale deed but also to put the property in possession of the decree-holder. This is in consonance with the provisions of Section 55(1) of the Transfer of Property Act which provides that the seller is

bound to give, on being so required, the buyer or such person as he directs, such possession of the property as its nature admits.

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16. It may be pointed out that the Additional Civil Judge had decreed the suit for **specific performance** of the contract. The High Court modified the decree to the extent that the sale deed was to be executed by Respondents 6 to 9 together with the petitioner. In short, the decree was passed by the High Court not only against Respondents 6 to 9 but also against the subsequent purchaser i.e. the petitioner and thus the petitioner was himself the judgment-debtor and it cannot be said that he was a third person in possession and, therefore, relief for possession must be claimed. The contention on behalf of the petitioner is that the relief for possession must be claimed in a suit for **specific performance** of a contract in all cases. This argument ignores the significance of the words "in an appropriate case". The expression only indicates that it is not always incumbent on the plaintiff to claim possession or partition or separate possession in a suit for **specific performance** of a contract for the transfer of the immovable property. That has to be done where the circumstances demanding the relief for **specific performance** of the contract of sale embraced within its ambit not only the execution of the sale deed but also possession over the property conveyed under the sale deed. It may not always be necessary for the plaintiff to **specific**ally claim possession over the property, the relief of possession being inherent in the relief for **specific performance** of the contract of sale. Besides, the proviso to sub-section (2) of Section 22 provides for amendment of the plaint on such terms as may be just for including a claim for such relief "at any stage of the proceeding"."